

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

BRENDA BENITEZ,

Plaintiff(s),

-against-

CITY OF NEW YORK, OFFICER ROY VALENTIN (NYPD)
SHIELD#11808, OFFICERS JOHN/JANE DOE#1-10 (THE
NAME(S) JOHN/JANE DOE BEING FICTICIOUS, AS THE
TRUE NAME(S) ARE PRESENTLY UNKNOWN),

Defendant(s).

Index No.

Summons

Date Index No. Purchased: July 9, 2020

To the above named Defendant(s)

City of New York
C/O ServiceECF@law.nyc.gov

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is CPLR 504(3)
which is the correct statute since the events described took place in Bronx County.

Dated: NEW YORK, NEW YORK
July 9, 2020

Law Office of Andrew L. Hoffman, PC

by 

Andrew L. Hoffman, Esq.

Attorneys for Plaintiff

261 Madison Avenue, 12th FL
New York, NY 10016

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

-----X
BRENDA BENITEZ,

Plaintiff,

Index No.:

-against-

COMPLAINT

THE CITY OF NEW YORK, OFFICER ROY
VALENTIN (NYPD) SHIELD#11808, OFFICERS
JOHN/JANE DOE #1-10 (THE NAME(S) JOHN/JANE
DOE BEING FICTICIOUS, AS THE TRUE NAME(S)
IS/ARE PRESENTLY UNKNOWN,

JURY TRIAL
DEMANDED

Defendants.
-----X

The Plaintiff, complaining by her attorney(s), THE LAW OFFICE OF ANDREW L.
HOFFMAN, P.C., respectfully shows this Court and alleges:

INTRODUCTION

1. This is an action to vindicate the rights of Brenda Benitez, a Bronx resident with no prior criminal record, who was wrongfully arrested after a neighbor falsely alleged Benitez had threatened her with a machete.
2. The neighbor made the bogus claim in retaliation for Benitez complaining about the volume of her music, and because she thought Benitez was somehow responsible for an undefined water problem in her apartment.
3. Although the allegation was strange and sparse, and the defendant officers knew of the prior feud between the neighbors, no good faith investigation was undertaken to corroborate the claim.

4. Instead the defendant officers pounded on Ms. Benitez's door—and when she opened it, Defendant Valentin stepped over the threshold into her apartment, demanding to know “what happened.”
5. Not knowing what he was talking about, Ms. Benitez asserted her rights, telling the officers to come back with a warrant and attempting to close the door.
6. Defendant Valentin held the door open, saying, “You're not just gonna close the door on us like that!”
7. Defendant Officer Jane Doe likewise crossed Benitez's threshold, and raised her baton as if preparing to strike.
8. “Are you going to hit me?” asked Benitez.
9. “If I have to!” Doe responded.
10. In response to this threat, Benitez submitted to the officers, stepping out of her apartment into the hallway, and requesting that the officers do the same.
11. Yet Valentin continued to keep one foot in her apartment, taunting Ms. Benitez and refusing to exit, despite her repeated requests that he do so.
12. Ms. Benitez then attempted to re-enter her apartment, at which point Officer Doe said, “You're not going anywhere,” making explicit what had been clear from the moment officers crossed Ms. Benitez's threshold and prevented her from closing her door at the threat of force: Ms. Benitez was not free to leave, and had effectively been placed under arrest.
13. For the next six minutes, a stand-off ensued: the two officers knew that the strange and uncorroborated word of a feuding neighbor, without more, did not establish probable cause to arrest.

14. Even worse, because the neighbor knew Ms. Benitez only by apartment number and not by name, police could not even be sure Benitez was the alleged culprit, as opposed to another occupant of the unit.
15. Nevertheless, the officers had already made a warrantless “across the threshold arrest,” of Ms. Benitez.
16. So, the befuddled officers stood there; Valentin eventually made a phone call and Doe mumbled into her radio—both apparently looking for guidance on what to do.
17. The minutes rolled on, mostly in silence as the officers waited for someone to get back to them; finally, Officer Doe looked at Valentin and muttered, “I think at this point, we should just go ahead and...and do it.”
18. Shortly thereafter, Benitez was handcuffed, processed, and charged with misdemeanor harassment and criminal possession of a weapon, relative to the machete allegation.
19. No search warrant for Ms. Benitez’s apartment was ever sought, and no machete ever recovered.
20. Although the building had conspicuous hallway surveillance cameras that were well positioned to capture whatever interaction the neighbors may have had, the officers neither sought nor reviewed the footage; if they had, they would have quickly discovered that the neighbor’s claims were false.
21. Meanwhile, the neighbor apparently thought better of advancing her bogus claims in court and refused to cooperate with the District Attorney’s Office.
22. Approximately five months later, the case was dismissed—but not before Ms. Benitez was forced to hire a private attorney and endure a suspension from her job as a result of the baseless arrest.

23. The individual Defendants in this case are now being sued for their respective roles in the violation of Ms. Benitez's rights.

24. The City of New York is being sued for failing to properly train, supervise, and/or discipline New York City police officers, and for continuing to tolerate and defend a widely publicized departmental culture of brutality and deliberate indifference to the rights of citizens.

THE PARTIES

25. At all times relevant herein, Plaintiff BRENDA BENITEZ was a resident of the Bronx, and the events set forth herein occurred in the Bronx; as such, pursuant to CPLR § 504(3), Bronx County is the proper venue for this action, and the amount of damages sought in each claim exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

26. Upon information and belief, at all times relevant, the Defendant, CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and that at all times relevant all Defendant officers were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

27. Upon information and belief, at all times relevant, the Defendant, CITY OF NEW YORK, its agents, servants, and employees, operated, maintained and controlled the New York City Police Department, including all the police officers thereof.

28. Upon information and belief, at all times hereinafter mentioned, Defendant officers VALENTIN and POLICE OFFICER(S) DOE #1-10¹ were employed by the Defendant CITY OF NEW YORK, as members of its police department.
29. The New York City Police Department is a local governmental agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and the police chief of the New York City Police Department is responsible for the policies, practices, and customs of the New York City Police Department as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees, and is the final decision maker for that agency.
30. This action arises under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments of the Constitution of the United States, and under federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983, the rights guaranteed by the Constitution, and the laws of the State of New York.
31. Individual Defendants in this action are being sued in both their individual and official capacities.

STATEMENT OF FACTS

32. On December 30, 2018, at about 6:40PM, Plaintiff Brenda Benitez heard a knock on the front door of her apartment (#4A), located at 2505 Aqueduct Avenue, Bronx, New York.

¹ Plaintiff's diligent search for the identity of all Defendants involved remains ongoing. Accordingly, the Corporation Counsel is on notice that the plaintiff intends to name every party involved as a defendant once their identities are revealed through discovery. All appropriate steps to prepare their defenses and otherwise inform them that they will be individually named should be undertaken forthwith.

33. When Benitez opened the door, her downstairs neighbor, Michelle Abreu, was leaning against her doorframe looking annoyed.
34. Ms. Benitez had previously complained to the super about Ms. Abreu's music being too loud, and Ms. Abreu took issue with that—so the relationship between them was contentious.
35. Abreu proceeded to allege, in sum and substance, that Ms. Benitez had somehow caused an undefined water problem in her apartment by pouring water into a pipe.
36. Ms. Benitez had no idea what Abreu was talking about, as the allegation made no sense; moreover, neither she, nor anyone else in her apartment, had done anything to cause a water problem in Abreu's apartment.
37. When Ms. Benitez communicated this, Abreu calmly walked away, shaking her head skeptically, but in no way alarmed, apparently returning to her apartment downstairs.
38. The unremarkable interaction lasted about 10 seconds.
39. Video of the exchange was captured by a surveillance camera, which at all times relevant was conspicuously positioned at the end of the hallway, in close proximity to Ms. Benitez's apartment.
40. The Plaintiff's claims arose approximately 33 minutes later, at about 7:13PM, when Plaintiff Brenda Benitez heard someone pounding on her front door.
41. Assuming it was Abreu with another strange complaint, Ms. Benitez activated her cell phone video camera and opened the door; to her surprise, it was Defendant Officer Valentin and his partner, Officer Jane Doe.
42. Valentin shoved his foot over the threshold into Benitez's apartment and demanded to know "what happened."

43. When Ms. Benitez indicated she did not know what he was talking about, Officer Doe stated, “Someone called, you pulled a knife, a machete on them, so we’re here to investigate....What happened, tell me your side!”
44. Benitez again communicated that she had no idea what the officers were talking about, as Valentin continued to keep his foot in her apartment without permission or authority.
45. Confused, frightened, and offended by the officers’ conduct, Ms. Benitez asserted her rights, telling the officers to come back with a warrant and attempting to close the door.
46. Defendant Valentin held the door open, saying, “You’re not just gonna close the door on us like that!”
47. Defendant Doe likewise crossed Benitez’s threshold, and raised her baton as if preparing to strike.
48. “Are you going to hit me?” asked Benitez.
49. “If I have to!” Doe responded.
50. In response to this threat, Benitez submitted to the officers, stepping out of her apartment into the hallway, and requesting that they do the same.
51. Yet Valentin continued to keep one foot in her apartment, taunting Ms. Benitez and refusing to exit, despite her repeated requests that he do so.
52. The officers continued to demand that Benitez tell them “what happened” as she continued to convey that she had no idea what they were talking about.
53. Ms. Benitez then attempted to re-enter her apartment, at which point Officer Doe said, “You’re not going anywhere,” making explicit what had been clear from the moment officers crossed Ms. Benitez’s threshold and prevented her from closing her door at the

threat of force: Ms. Benitez was not free to leave, and had effectively been placed under arrest.

54. When Ms. Benitez again requested that Valentin take his foot out of her apartment, Officer Doe replied, “It doesn’t work like that.”

55. For the next six minutes, a stand-off ensued: the two officers knew that the strange and uncorroborated word of a feuding neighbor, without more, did not establish probable cause to arrest.

56. Even worse, because Abreu knew Ms. Benitez only by apartment number and not by name, police could not be sure Benitez was the alleged culprit, as opposed to another occupant of the unit.

57. Nevertheless, the officers had already made an illegal “across the threshold arrest,” of Ms. Benitez, despite a total absence of probable cause, a warrant, or any exigent circumstance to justify their conduct.

58. The officers had seen no machete, and knew Benitez was neither armed nor dangerous, as evidenced by the fact that they made no immediate effort to handcuff, or even frisk her.

59. The officers likewise knew that whatever occurred between Abreu and Benitez had at most amounted to misdemeanor-level culpability, had ended well before their arrival, and that Abreu—the alleged victim of the threat—was no longer in the vicinity of Benitez’s apartment, and thus, in no imminent danger.

60. In addition, the officers had never been in “hot pursuit” of Ms. Benitez, as their arrest had nothing to do with encountering her in a public place and Benitez then escaping to a private one.

61. Moreover, the officers had no reason to believe Ms. Benitez might escape from her fourth-floor apartment, or destroy evidence (i.e., a machete).
62. Meanwhile, the officers' bullish conduct had made the prospect of a fruitful interview impossible—and even if it had not, Ms. Benitez could not provide information about an event with a machete that never occurred.
63. So, the befuddled officers stood there; Valentin eventually made a phone call and Doe mumbled into her radio—both apparently looking for guidance on what to do.
64. The minutes rolled on, mostly in silence as the officers waited for someone to get back to them; at one point, Valentin smirked flirtatiously at Benitez, tilted his head and asked, “You like looking at me? Hmm? Is that a yes?”
65. Finally, the officers got tired of waiting—Officer Doe looked at Valentin and muttered, “I think at this point, we should just go ahead and...and do it.”
66. Shortly thereafter, Benitez was handcuffed, taken the precinct, and put through central booking, relative to the machete allegation.
67. At all times relevant, the defendant officers knew that a prior bitter relationship existed between Benitez and Abreu that could have given Abreu a motive to lie; more specifically, Abreu had told the officers that Benitez complained about the volume of her music, and that Benitez was somehow causing undefined water problems for her downstairs by pouring water into a pipe.
68. Nevertheless, they declined to take any good faith investigative steps to corroborate Abreu's claim.

69. At all times relevant, the building had open and obvious hallway surveillance cameras that were well positioned to capture whatever interaction the neighbors may have had—but the officers made no effort to seek or review the footage.
70. If the officers had viewed the footage, they would have seen immediately that the 10 second exchange between Benitez and Abreu provided no evidence that Abreu had been physically threatened by Benitez, with a machete or otherwise.
71. No search warrant for Ms. Benitez's apartment was ever sought, and no machete ever recovered.
72. Notwithstanding, the Defendant officers sought to manufacture a case by fabricating evidence against Ms. Benitez; to wit, upon information and belief, the defendant officers told the District Attorney's office that a machete had been recovered from Ms. Benitez's apartment, that the complainant Abreu had positively identified Benitez as the person who threatened her with a machete, and that Abreu identified the machete as the weapon Benitez had used to threaten her.
73. The Defendant officers also deliberately withheld from prosecutors that Benitez's building had conspicuous hallway surveillance cameras, and that they had made no effort to obtain or review the footage.
74. As a result of these fabrications, the Bronx District Attorney's Office charged Benitez with NYPL 120.14(1), Menacing in the Second Degree, an A misdemeanor; NYPL 265.01(2), Criminal Possession of a Weapon in the Fourth Degree, an A misdemeanor; NYPL 120.15, Menacing in the Third Degree, a B misdemeanor; and NYPL 240.26(1), Harassment in the Second Degree, a violation.

75. Meanwhile, Abreu apparently thought better of advancing her bogus claims in court and refused to cooperate with the District Attorney's Office.
76. On May 7, 2019, the frivolous case was dismissed on the prosecutor's motion—but not before Ms. Benitez was forced to suffer a night in jail, hire a private attorney, make multiple court appearances, be subject to a Temporary Order of Protection, and endure a suspension from her job as a result of the baseless arrest.

AS AND FOR THE FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRENDA BENITEZ
AGAINST DEFENDANTS VALENTIN AND DOE

Violation of Constitutional Rights Under Color of State Law
-Warrantless Entry and Arrest in Violation of
Payton v. New York and United States v. Allen-

77. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 76.
78. The Fourth Amendment of the United States Constitution protects citizens from unreasonable searches and seizures by government officials. Specifically, the Fourth Amendment precludes police officers from entering or arresting someone in their home in the absence of appropriate process—e.g., a warrant—or special circumstances.
79. That the officers entered, arrested, and remained in the home of the Plaintiff in the absence of permission, a legitimate warrant, or exigent circumstance, was clearly improper and represents a violation of the Plaintiff's rights under the Fourth Amendment of the United States Constitution.
80. The Defendant officers had adequate time to apply for a search and/or arrest warrant before stepping into Plaintiff's home, yet they chose not to do so.

81. This conduct on the part of Valentin and Doe also represents a violation of 42 U.S.C. § 1983, given that said actions were undertaken under color of state law.
82. The Defendant officers' actions were motivated by bad faith and malice.
83. As a direct and proximate result of the unconstitutional acts described above, Ms. Benitez has been substantially injured.

AS AND FOR THE SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRENDA BENITEZ
AGAINST DEFENDANTS VALENTIN AND DOE

Violation of Constitutional Rights Under Color of State Law
-False Arrest/Imprisonment-

84. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 83.
85. The Fourth Amendment of the United States Constitution protects citizens from unreasonable searches and seizures by government officials and prohibits law enforcement officers from arresting and detaining individuals in the absence of appropriate authorization. It also precludes police officers from conducting arrests in the absence of probable cause to believe that a crime has been committed.
86. The actions of the Defendants as stated herein violated Brenda Benitez's rights under Federal law.
87. As set forth herein, it is clear that the Defendant officers lacked any objectively reasonable basis to support a legitimate probable cause arrest.
88. Defendants' actions were motivated by bad faith, malice, and/or deliberate indifference to the rights Brenda Benitez.

89. This conduct on the part of Defendants also represents a violation of 42 U.S.C. § 1983, given that said actions were undertaken by New York City police officers under color of state law.

90. As a direct and proximate result of the unconscionable acts described above, Plaintiff Brenda Benitez has been substantially injured.

AS AND FOR THE THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRENDA BENITEZ
AGAINST DEFENDANTS VALENTIN AND DOE

Violation of Constitutional Rights Under Color of State Law
-Malicious Prosecution-

91. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 90.

92. The Fourth Amendment of the United States Constitution protects citizens from malicious prosecution by government officials without probable cause.

93. Brenda Benitez was prosecuted, without probable cause, following an illegal arrest, and relative to the unreliable and uncorroborated word of a neighbor who had a prior bitter relationship with Benitez, and a clear motive to lie.

94. The false and malicious charge resulted in a loss of liberty for Ms. Benitez, as she was incarcerated and forced to fight the false charges in Court.

95. The case against Ms. Benitez was unambiguously terminated in her favor after it was dismissed upon a motion from the prosecutor on May 7, 2019.

96. Defendants' actions were motivated by bad faith, malice, and/or deliberate indifference to the rights of Ms. Benitez.

97. This conduct on the part of Defendants also represents a violation of 42 U.S.C. § 1983, given that said actions were undertaken under color of state law.

98. As a direct and proximate result of the unconstitutional acts described above, Plaintiff Brenda Benitez has been substantially injured.

AS AND FOR THE FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRENDA BENITEZ
AGAINST DEFENDANTS VALENTIN AND DOE

Violation of Constitutional Rights Under Color of State Law
-Denial of Constitutional Right to Fair Trial Due to Fabrication of Evidence-

99. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 98.

100. Defendants created false evidence against Plaintiff Brenda Benitez.

101. Defendants forwarded this material false evidence and false information to prosecutors in the Bronx County District Attorney's office.

102. Defendants misled the judge and the prosecutors by creating false evidence against Plaintiff Brenda Benitez.

103. Specifically, the Defendant officers told the District Attorney's office that a machete had been recovered from Ms. Benitez's apartment, that the complainant Abreu had positively identified Benitez as the person who threatened her with a machete, and that Abreu identified the machete as the weapon Benitez had used to threaten her.

104. In creating false evidence against Plaintiff Brenda Benitez, in forwarding false evidence and information to prosecutors, Defendants violated Plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth, Sixth and Fourteenth Amendments of the United States Constitution.

105. This conduct on the part of Defendants also represents a violation of 42 U.S.C. § 1983, given that said actions were undertaken under color of state law.

106. As a direct and proximate result of the unconstitutional acts described above, Plaintiff Brenda Benitez has been substantially injured.

AS AND FOR THE FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRENDA BENITEZ
AGAINST DEFENDANTS VALENTIN AND DOE

Violation of Constitutional Rights Under Color of State Law
-Conspiracy to Violate Plaintiff's Civil Rights-

107. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 106.

108. Defendant officers, as state actors in their individual capacities pursuing personal interests wholly separate and apart from that of the City of New York or New York City Police Department, conspired together, reached a mutual understanding, and overtly acted in concert to undertake a course of conduct violative of the Plaintiff's constitutional rights by:

- a. Agreeing to deliberately and maliciously make a warrantless "across the threshold arrest" of the Plaintiff;
- b. Agreeing to fabricate evidence, wrongfully arrest, and bring false charges against the Plaintiff, as set forth herein; and
- c. Agreeing not to intervene with any of the misconduct directed at Ms. Benitez, as set forth herein.

109. This conduct on the part of Defendants also represents a violation of 42 U.S.C. § 1983, given that said actions were undertaken under color of state law.

110. Defendants' actions were motivated by bad faith, malice, and/or deliberate indifference to the rights of Ms. Benitez.

111. As a direct and proximate result of the unconstitutional acts described above, Plaintiff Brenda Benitez has been substantially injured.

AS AND FOR THE SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRENDA BENITEZ
AGAINST DEFENDANTS VALENTIN AND DOE

Violation of Constitutional Rights Under Color of State Law
-Failure to Intercede-

112. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 111.

113. In allowing the arrest and prosecution of Plaintiff Brenda Benitez without justification, and in failing to prevent the forwarding false evidence and information to prosecutors, Defendants violated Plaintiff's constitutional rights, as aforescribed.

114. It is widely recognized that all law enforcement officials have an affirmative duty to intervene to protect the clearly established constitutional rights of citizens from infringement by other law enforcement officers in their presence.

115. At all times relevant herein, the right to be free from deprivations of liberty interests caused by unjustifiable stops, searches, and false arrests were clearly established constitutional rights that a reasonable person would have known.

116. At all times relevant, Defendants had a reasonable opportunity to intervene, but elected not to do so; their actions were motivated by bad faith and malice, and/or deliberate indifference to the rights of Brenda Benitez.

117. This conduct on the part of Defendants also represents a violation of 42 U.S.C. § 1983, given that said actions were undertaken under color of state law.

118. As a direct and proximate result of the unconstitutional acts described above, Plaintiff Brenda Benitez has been substantially injured.

AS AND FOR THE SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRENDA BENITEZ
AGAINST DEFENDANT CITY OF NEW YORK

Violation of Constitutional Rights Under Color of State Law
-Implementation of Municipal Policies, Practices, and Customs that Directly Violate
Constitutional Rights, Failure to Implement Municipal Policies to Avoid Constitutional
Deprivations and Failure to Train and Supervise Employees
Under Color of State Law-

119. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 118.

120. Upon information and belief, Defendants City of New York, New York City Police Chief James P. O'Neill, or his designee(s), were supervisors and final decision makers, and as a matter of policy, practice, and custom, have acted with a callous, reckless and deliberate indifference to the Plaintiff's constitutional rights and laws of the United States, in that they failed to adequately discipline, train, supervise or otherwise direct police officers concerning the rights of citizens as set forth herein, allowed or encouraged employees to fabricate evidence against the Plaintiff as set forth herein, allowed or encouraged failures to investigate further when a reasonable officer would have done so as set forth herein, and allowed or encouraged the forwarding of false or otherwise unreliable evidence to prosecutors.

121. In the alternative, and upon information and belief, Defendants City of New York, New York City Police Chief James P. O'Neill, or his designees, instituted policies addressing the topics listed above, but through a culture of gross negligence, carelessness, malice, and/or the enforcement of illegal and immoral quotas,² demonstrated a deliberate and willful indifference to the constitutional rights of the Plaintiff.

122. Following the landmark Floyd v. City of New York, 959 F.Supp. 2d 540 (S.D.N.Y. 2013), Judge Scheindlin appointed a monitor to oversee the N.Y.P.D.'s compliance with Court Ordered remedies. (Id. at 543.) While the "stop and frisk" in Floyd is not specifically at issue in the present case, the related issue of inadequate monitoring and supervision of officers certainly is—and it is notable that the N.Y.P.D. monitor's 2/16/2016 report emphasized that departmental reforms "need[] to be communicated and reinforced better, not just at the top, but throughout the Department.... Ultimately, this is a challenge of leadership, particularly for those who supervise officers engaged in day-to-day enforcement activities—sergeants, their immediate supervisors, and the precinct and unit commanders who set the tone for those under them. This challenge implicates every aspect of the court orders and the parties' agreements, and it will not be met without changes in policies, training, supervision, and all the ways the NYPD incentivizes good police behavior and discourages unacceptable behavior. This is a large task that will take time and substantial effort to accomplish."

² See e.g., Floyd v. City of New York, 08-CV-1034 (S.D.N.Y.), the landmark "stop and frisk" case replete with references to secret recordings that detailed lieutenants' directives to officers to "get those numbers" and which led to the appointment of an N.Y.P.D. monitor; Schoolcraft v. City of New York, 10-cv-6005 (S.D.N.Y.), an officer retaliation case alleging illegal NYPD quotas and the manipulation of crime reports which settled for \$600,000; Mathews v. City of New York, 12-CV-1354 (S.D.N.Y.), an officer retaliation case where Mathews accused the city of retaliating against him for speaking out against quotas, which settled for \$280,000; Stinson, et al. v. City of New York, et al., 10-CV-4228 (S.D.N.Y.), which resulted in a \$75 million settlement in 2017; Raymond, et al., v. City of New York, et al., 15-CV-6885 (S.D.N.Y.), a pending class action/officer retaliation case recently featured in a Hulu documentary called Crime & Punishment. Each of these cases was widely covered in the press.

123. In 2011, some two-dozen Bronx-based NYPD officers were subject to criminal charges³ involving allegations of “fixing” tickets for friends and relatives.
124. Upon information and belief, in July of 2012, after discovering that many people arrested on charges of criminal trespass at Bronx County housing projects were innocent, even though police officers had provided written statements to the contrary, the Bronx district attorney’s office quietly adopted a policy⁴ of no longer prosecuting people who were stopped at public housing projects and arrested for trespassing, unless the arresting officer was interviewed to ensure that the arrest was warranted.
125. The nature, regularity, and scale of such revelations gives rise to an inference of systemic incompetence and corruption on the part of the New York City Police Department, as such a legacy of injustices cannot plausibly be laid at the feet of a few rogue officers.
126. Nevertheless, despite having actual or constructive notice of said incompetence and corruption, New York City Police Chief James P. O'Neill or his designee(s), either turned a blind eye or actively rewarded such conduct.
127. This policy of inaction existed, despite the obvious need for enhanced training and supervision regarding the conduct described herein.

³ See Big Inquiry Into Ticket-Fixing in New York, New York Times, April 17, 2011, available at http://www.nytimes.com/2011/04/18/nyregion/ticket-fixing-by-police-investigated-in-new-york.html?_r=0&adxnnl=1&adxnnlx=1400166713-OIwMCI6A6jnLyJC00DdeoQ

⁴ Prosecutor Deals Blow to Stop and Frisk Tactic, New York Times, September 25, 2012, available at <http://www.nytimes.com/2012/09/26/nyregion/in-the-bronx-resistance-to-prosecuting-stop-and-frisk-arrests.html?pagewanted=all>

128. Accordingly, there can be no doubt that policy makers at the highest levels of the NYPD condoned, rewarded, or otherwise ratified the policy, practice, and/or custom permitting illegal quotas, illegal arrests, illegal entries, and the fabrication of evidence.

129. There can likewise be no doubt that the policy makers action or inaction described herein was causally linked and a “moving force” behind the constitutional violations suffered by Brenda Benitez.

130. Defendant(s) also, upon information and belief, demonstrated deliberate indifference to the rights of those arrested in the City of New York by failing to adequately hire, screen, train, and supervise officers in Bronx County and the 52nd Precinct.

131. The policies, procedures, customs and practices of the above-referenced Defendants violated the Constitutional rights of the Plaintiff under the Fourth, Sixth, and Fourteenth Amendments of the United States Constitution.

132. This conduct on the part of Defendants also represents a violation of 42 U.S.C § 1983, given that said actions were undertaken under color of state law.

133. Upon information and belief, none of the Defendants named herein have been disciplined in any way for their actions relative to the Plaintiff; nor has the Internal Affairs Bureau undertaken an investigation of the events complained of herein.

134. As a direct and proximate result of the unconstitutional acts described above, the Plaintiff has been substantially injured.

DEMAND FOR PUNITIVE DAMAGES

135. The actions of Defendants described herein were extreme and outrageous and shock the conscience of a reasonable person. Consequently, an award of punitive damages is

appropriate to punish the named Defendants. The Plaintiff does not seek punitive damages against the City of New York.

DEMAND FOR TRIAL BY JURY

136. The Plaintiff hereby demands a trial by jury.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Brenda Benitez requests that this Honorable Court grant the following relief:

- A. A judgment against all individual Defendants for compensatory damages, and punitive damages in an amount to be determined by a properly charged jury;
- B. A judgment against the Defendant City of New York for compensatory damages in an amount to be determined by a properly charged jury;
- C. A monetary award for attorneys fees and costs of this action, pursuant to 42 U.S.C. § 1988;
- D. Any other relief this Court finds to be just, proper, and equitable.

Dated: New York, New York
July 9, 2020

Respectfully Submitted By:

The Law Office of Andrew L. Hoffman, P.C.
By:

/s/
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